

Inayat Khan v. State of U.P. — disputed bill relegated to cl. 6.5(b)

High Court of Judicature at Allahabad · Division Bench · 13 April 2016 · Writ-C No. 16722 of 2016 · Writ-C No. 16722 of 2016 ·
Writ disposed; relegated to cl. 6.5(b); recovery stayed 4 weeks

HEADNOTE

A consumer who challenges recovery of electricity dues by disputing the accuracy of the bill must first complain under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The Division Bench disposed of the writ with liberty to complain within one week, directed the competent authority to decide within two weeks, and kept recovery in abeyance for four weeks or until disposal of the complaint, whichever was earlier.

FACTUAL SUMMARY

Inayat Khan petitioned the Allahabad High Court against recovery proceedings started by the electricity corporation for outstanding dues, and challenged the correctness of the bill on which recovery was based. The Division Bench heard the State, the corporation, and the third respondent, noted that disputed questions of fact were involved, and pointed to the statutory complaint available where a consumer disputes the accuracy of a bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy complaint as alternative to writ

HOLDING

Where the consumer disputes the accuracy of a bill and recovery of outstanding dues has been initiated, the writ court will not decide disputed questions of fact and will relegate the consumer to a complaint before the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005, with a short time to complain, a corresponding direction to decide in accordance with law, and an interim stay of recovery until that decision or a brief outer limit, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE DISPUTED QUESTIONS OF FACT UNDERLYING THE RECOVERY

Writ not decided on merits; relegated to clause 6.5(b). ¶ 1